TEXORA · COURSE NOTES · LECTURE SHEET

Deviance and Crime

Behaviour that breaks a society's rules — what deviance and crime are, how crime is woven into social organisation and culture, and the two classic theories of Durkheim and Merton that explain why rule-breaking never disappears.

HUM-2209 · SOCIOLOGY AND HUMAN ECOLOGY · TOPIC 8 · LEVEL 2 TERM 2

1. Deviance and crime: definitions

Deviance is behaviour that violates the norms of a society or group and attracts disapproval — from a raised eyebrow to imprisonment. **Crime** is the narrower, legal category: an act (or omission) that violates the written law and is punishable by the state. Every crime is deviant, but much deviance is not crime: rudeness, eccentricity, breaking a dress code, or betraying a friend break norms without breaking any law. Conversely, the boundary moves — acts once criminal (in many countries, selling goods on a weekly holiday) become innocent, and new crimes (cyber-fraud) are invented by new technology and new law.

Three properties of deviance repay attention:

- **It is relative.** The same act is deviant in one society, age or context and normal in another; deviance is defined by the audience's rules, not by the act alone.
- **It is defined by power.** Groups with more power write their norms into law; the deviance of the powerful (tax evasion on a vast scale) is policed more gently than the deviance of the poor.
- **It is controlled by sanctions** — informal (ridicule, gossip, ostracism) and formal (police, courts, fines, prison). The whole apparatus is called **social control**, and it is also what produces the statistics by which crime is measured.

2. Crime as a social and cultural phenomenon

Crime feels like the opposite of society, yet sociology insists it is one of society's own products. It is **social** because its definition comes from law, which society makes and remakes; its volume and shape follow social conditions — unemployment, inequality, urban crowding, the weakening or strengthening of family and community controls. It is **cultural** because what counts as crime, how criminals are viewed, and even the styles of offending (the honour killing, the dowry killing, the white-collar fraud) are patterned by a culture's values, customs and opportunities. Two societies with the same written laws can have utterly different crime profiles because their cultures differ; and within one society, crime

clusters predictably by age (the young offend most), sex (men far more than women in recorded crime) and place (particular districts year after year) — regularities no theory of individual wickedness can explain.

3. Crime and social organisation

Crime relates to social organisation in two directions. Weak or disorganised communities breed it: where families are broken by migration, schools and clubs absent, and neighbours strangers, informal control collapses and gangs recruit the unsupervised — the classic finding of the Chicago School's studies of city zones. But crime is also, disturbingly, *organised* within society: **organised crime** is the systematic, continuing pursuit of profit through illegal goods and services by structured groups. Its marks are a division of labour and hierarchy, discipline enforced by violence, corruption of officials as a business tool, and investment of illegal profits into legal fronts. Smuggling networks, drug syndicates and human-trafficking rings on the routes out of and into Bangladesh fit the type exactly, and they survive precisely because they are organisations — arresting individuals does not dissolve the structure.

A third category sits between custom and crime: **culture-based crime** — offences committed in the name of, or under the pressure of, cultural norms. Violence justified as defending family "honour," dowry demands enforced by abuse, child marriage arranged by custom, or vigilante punishment blessed by a village gathering are crimes by law that their perpetrators experience as duties by culture. They are the hardest crimes to police, because the local audience — whose disapproval is the first sanction — does not disapprove. Law reform alone fails against them; the norm itself has to change, which returns us to socialization (Topic 2) and social change (Topic 9).

4. Durkheim: anomie and the normality of crime

Émile Durkheim made two unsettling claims. First, **crime is normal**: it is found in every society, at every level of prosperity, and a society with no crime at all would have to crush individuality so completely that progress became impossible. Crime is even **functional**: it marks the boundaries of the acceptable (punishment ceremonies re-teach the rules), it unites the law-abiding in shared outrage, and it prepares change — the heretic punished in one age is honoured as a reformer in the next. It becomes pathological (diseased) only when its rate climbs far beyond the society's norm, as in a sudden social upheaval.

Second, deviance flourishes under **anomie** — a state of normlessness in which the rules regulating ambition and conduct break down. Durkheim found it in his study of suicide: in sudden booms as much as in crashes, expectations lose their ceiling, desires become infinite and unregulatable, and self-destruction rises (anomic suicide). The general lesson: crime and deviance are not caused by rules but

by the *collapse* of rules — in neighbourhoods stripped of institutions, economies in violent transition, and lives where the ladder of ambition has no agreed rungs.

5. Merton: strain theory and the modes of adaptation

Robert K. Merton rebuilt Durkheim's idea into the most examined theory in criminology. Every culture, he argued, sets **goals** for its members (in his America, wealth and success) and prescribes the **institutionalised means** for reaching them (education, work, saving). When the culture urges the goal on everyone but the social structure gives legitimate means to only some, the result is **strain** — and individuals adapt to the strain in five ways, according to whether they accept (+) or reject (−) the goals and the means:

MODE	GOALS	MEANS	MEANING	EXAMPLE
Conformity	+	+	Accepts both; the ordinary law-abiding citizen	The clerk who works, saves and hopes honestly
Innovation	+	−	Keeps the goal, invents illegitimate means — the source of most property crime	The smuggler or fraudster who wants wealth as much as any businessman
Ritualism	−	+	Abandons the goal, clings to the rules for their own sake	The official who follows every procedure and has forgotten what it was for
Retreatism	−	−	Rejects both; drops out of the contest	The addict, the chronic drifter — Merton's true “outsiders”
Rebellion	±	±	Rejects both and substitutes new goals and new means	The revolutionary who wants a different society, not a bigger share of this one

The theory's elegance is that deviance is produced not by deviant people but by a normal culture plus an unequal structure: the greater the gap between preached goals and available means, the more innovation (crime) the society manufactures. Its limits are also known: it explains lower-class property crime better than crimes of passion, corporate crime, or offences by those who already have the means.

POINT	DURKHEIM	MERTON
Key concept	Anomie — breakdown of norms	Strain — gap between cultural goals and legitimate means

Source of deviance	Rapid change deregulates desire and conduct	A stable culture plus an unequal opportunity structure
View of crime	Normal and even functional, pathological only in excess	A predictable adaptation (innovation) to blocked opportunity

6. Glossary — key terms of this topic

TERM	MEANING
Deviance	Behaviour violating a group's norms and attracting disapproval; broader than crime.
Crime	An act or omission violating the written law, punishable by the state.
Social control	All the means — informal sanctions to courts and police — by which society secures conformity.
Anomie	Durkheim's term for normlessness: the breakdown of rules regulating ambition and conduct.
Strain	Merton's term for the pressure produced when cultural goals outrun the legitimate means available.
Organised crime	Continuing, structured pursuit of profit through illegal goods and services, protected by violence and corruption.

7. Key points and summary

- Crime is the legal tip of the larger iceberg of deviance; both are relative to time, place and audience, and both are socially produced.
- Crime patterns follow social organisation: it breeds where controls collapse, organises itself into business-like syndicates, and hides inside culture where custom blesses what law forbids.
- Durkheim: crime is normal and functional within limits; anomie — normlessness in rapid change — is the danger state.
- Merton: strain between universal goals and unequal means yields five adaptations; innovation explains much property crime; the table of modes is the centrepiece.

8. Practice

Answer in your own words; brief model answers follow.

1. An act is punished severely in one district and ignored in the next. Use the relativity of deviance to explain how both reactions can be “normal”.
2. Place each case in Merton's table and justify: (a) a graduate who cannot find work begins forging certificates; (b) a clerk abandons promotion hopes but observes every office rule punctiliously; (c) a drug addict who has given up work and ambition; (d) a young activist working to replace the whole economic order.
3. Durkheim calls crime “normal” and even useful. State his two functions of crime, then give the condition under which crime becomes pathological.
4. A new industrial estate opens; within two years thefts and assaults nearby triple while the formal crime rate of the old city is unchanged. Analyse with anomie and with social disorganisation — one paragraph each.
5. Why is dowry-related violence harder to eliminate than ordinary assault of the same physical severity? Answer using the idea of culture-based crime and social control.
6. Give two criticisms of Merton's strain theory.

Answer key

1. Deviance is created by the audience's norms, not by the act alone. Norms vary by community (religion, urban/rural, generation), so the same behaviour can violate a strong norm in one place and no norm in the other; each audience's reaction is normal by its own rulebook.
2. (a) Innovation — goal (a job and income) kept, means (honest application) replaced by forgery. (b) Ritualism — goal of advancement abandoned, means (rules) clung to. (c) Retreatism — both goals and means rejected. (d) Rebellion — existing goals and means rejected and replaced by new ones.
3. Functions: boundary maintenance — punishment dramatises the rules and reunites the law-abiding; preparation of change — today's deviant may be tomorrow's reformer. Crime becomes pathological when its rate rises far beyond what is normal for that type of society, typically amid rapid social upheaval.
4. Anomie: the estate's sudden boom deregulated expectations — wages, migration and consumption outran the norms meant to govern them, so desire and conduct lost their ceiling. Disorganisation: thousands of strangers arrived faster than families, schools, clubs and neighbourly watchfulness could form; informal control collapsed in the gap, and offending filled it.
5. Because the surrounding culture may treat the conduct as a right or a private family matter, the first line of social control — neighbours', relatives' and community's disapproval — does not fire; victims are pressed to compromise, officials share the norm, and the law stands alone against the custom that produces the act.
6. Any two: it explains property crime of the poor better than crimes of violence or passion; it underplays crime by the affluent, who have legitimate means (white-collar crime); it assumes

everyone shares the same success goals, ignoring subcultures with different goals; it cannot say why only some strained individuals turn to crime.
